ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

Tribunal Numbers:	**2023/3361, 2023/3363 and 2023/4494**
First Applicant:	**VIDA REID**
Second Applicant:	**SIMON REID**
Third Applicant:	**FORWARD FOCUSED GROUP PTY LTD**
Respondent:	**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**

THIRD APPLICANT'S RESPONSE AND PROPOSED DIRECTIONS

in response to the Respondent's Proposed Minute of Order dated 14 August 2026

A. Capacity and position

1. This response states the position of Forward Focused Group Pty Ltd (FFG) in matter 2023/4494, by Simon Reid, a director of FFG and its authorised representative. A current company extract and a signed resolution confirming that authority will be provided to the Tribunal.

2. FFG adopts the procedural directions proposed by the Second Applicant at his directions 1, 2, 10, 11 and 12 to 15, which apply to all applicants, with the timing in his direction 12 applying equally to FFG's updated Statement of Facts, Issues and Contentions. It does not adopt any factual assertion or applicant-specific relief of the individual applicants. Nothing in this response, and no omission from it, is an admission or concession of any fact, allegation or contention advanced by the Respondent, whose case is contested in its entirety; and nothing in it waives any privilege or objection available to FFG.

B. Expiry, utility and relief

3. The decision under review is the internal review decision of 8 June 2023, which varied the corporate banning order. The order as varied was made under section 73ZN(1)(a) of the NDIS Act, prohibited FFG from providing supports or services, directly or indirectly, to NDIS-funded participants for three years, and is recorded in the Respondent's correspondence and on the register as no longer in force. The recorded expiry dates and times are inconsistent as between documents; FFG does not ask the Tribunal to adopt any one of them, and seeks the authenticated instruments and register history.

4. Expiry does not deprive the review of utility. The order remains recorded on the register as historical regulatory action; a banning order once in force bears on any future application concerning the company or its personnel; and, as set out in FFG's Position Statement of 6 March 2026, a finding that the order should not have been made bears on the correction of that record. FFG seeks a final decision under sections 105 and 108 of the ART Act setting aside the decision under review and substituting a decision that no banning order be made, with the temporal effect of that decision addressed expressly, and asks that the Respondent state what correction, annotation or continuing-publication position would follow from such a decision.

C. FFG-specific preliminary question

5. Whether the expression "providing supports or services, directly or indirectly, to NDIS-funded participants" in the varied corporate order identifies specified activities with the clarity required by the reasoning in Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2) [2025] FCA 1442 is a question specific to FFG's instrument, suitable for determination with the preliminary issues in the Second Applicant's direction 9, and capable of resolving or materially narrowing matter 2023/4494.

D. Further directions sought

F1. **Instruments and register history.** Within 7 days, the Respondent serve certified or sealed complete copies of the original corporate banning notice and order, the internal review decision and reasons of 8 June 2023, the order as varied, the instrument of delegation for each decision, and the register history recording each commencement, variation and expiry entry for FFG.

F2. **Disposition and schedules.** By the same dates as in the Second Applicant's directions 4, 5, 7 and 8, the Respondent provide in respect of FFG and matter 2023/4494: the statement of its proposed disposition, including the decision it will ask the Tribunal to make in an application concerning an order no longer in force and its position on correction or annotation of the register; its position on Sunflower as it concerns the corporate order; its statement of any investigation reliance as it concerns FFG; its witness notice; and a schedule stating, for every claim or allegation relied upon against FFG, the matters in categories (a) to (g) of the Second Applicant's direction 6 as they concern FFG, identifying in every case the entity said to have made each claim. No claim be attributed collectively to "FFG and Hybrid" without allocation.

F3. **Preliminary question.** The question at paragraph 5 above be determined with the preliminary issues in the Second Applicant's direction 9.

F4. **Liberty to apply** on reasonable notice.

Dated: _____ 2026

_____

Simon Reid

Director, for the Third Applicant